

Third Comment of the Obsidian Watch Group

Docket: HHS-OASH-2026-0232

Supplements tracking numbers: mtc-56yj-nmij and mtc-6i56-o6pm

Submitted by: Jay Puckett, Principal Security Researcher, Obsidian Watch Group

SUMMARY

The Request for Information asks how a threshold "should apply across botanical source material, semi-synthetic derivatives, and finished dosage forms." This comment answers that question in one specific and, we believe, unaddressed respect.

Every substance covered by the Department's recommendation and by DEA's orders sits on a single chemical scaffold. A second scaffold in the same plant, carrying a mu-opioid partial agonist, is not covered by anything. At least one state has already found it necessary to cover it. We ask the Department to say whether that was considered.

1. WHAT IS COVERED

DEA proposed rule, 6 July 2026 (DEA-2026-1190):
7-hydroxymitragynine above a specified threshold.

DEA temporary order, effective 26 August 2026 (91 FR, doc. 2026-17429):
mitragynine pseudoindoxyl;
MGM-15, also known as dihydro-7-hydroxymitragynine;
MGM-16, the 9-fluoro analogue.

The Department's letter of 6 March 2026 to Administrator Cole:
7-hydroxymitragynine only, by percentage and by an absolute limit of
1.00 milligram per article.

All four substances are structural relatives of mitragynine. Every one is on the mitragynine scaffold.

2. WHAT IS NOT COVERED

9-hydroxycorynantheidine is a minor indole alkaloid of *Mitragyna speciosa*, comprising less than one percent of total alkaloid content in the plant. It is a partial agonist at the mu-

opioid receptor. It stands to corynantheidine approximately as 7-hydroxymitragynine stands to mitragynine: a hydroxylated minor alkaloid with mu-opioid activity, present naturally in quantities too small to extract economically.

It is not named in the proposed rule, in the temporary order, in the Department's letter of 6 March 2026, or in the FDA scientific assessment supporting the threshold, except as words appearing inside the title of a cited journal article.

We searched the federal docket system for "9-hydroxycorynantheidine" and found no documents. We searched Senate lobbying disclosures and found no filings. We searched FDA's adverse event reporting system and found no reports. Each search was run against a control that returns results.

3. A STATE HAS ALREADY COVERED IT

Florida's emergency rule of June 2026 names 9-hydroxycorynantheidine among seven covered compounds.

We note only the fact. A state regulator identified this compound and wrote it into a rule, and the federal instruments issued in the following weeks did not.

4. THE DEPARTMENT'S OWN REASONING REACHES IT

In scheduling MGM-16, DEA stated:

"While no evidence supports the presence of MGM-16 on the *Mitragyna speciosa* consumer market, its profile as a highly potent opioid that is structurally related to 7-hydroxymitragynine lends itself as an [alternative]..."

That is a preemptive scheduling of a substance not on the market, on the express reasoning that sellers will substitute toward structurally related opioids.

We agree with that reasoning. We observe that it was applied within one chemical family and not extended to the other.

If the concern is substitution, the relevant question is not whether a compound resembles 7-hydroxymitragynine specifically, but whether it is an accessible mu-opioid agonist obtainable from the same plant, through the same supply chain, sold through the same retail channel, under the same botanical framing. On that test, 9-hydroxycorynantheidine qualifies and MGM-16, which is not on the market, also qualified.

5. WHY THIS MATTERS ON THIS DOCKET AND NOT LATER

Once the threshold takes effect, the commercial incentive to move to an unscheduled mu-opioid alkaloid from the same plant is immediate and obvious. That transition, if it occurs, will not be visible in adverse event data for many months, because reporting lags exposure.

The record before the Department is presently empty on this compound. That is an argument for addressing it now, while a rulemaking record is open, rather than after a consumer harm signal appears.

REQUESTED ACTIONS

1. State whether the Department's scientific and medical evaluation considered

mu-opioid-active alkaloids of *Mitragyna speciosa* outside the mitragynine scaffold, including 9-hydroxycorynantheidine, and if so, on what basis they were excluded.

2. State whether the reasoning applied to MGM-16, that a structurally related

potent opioid not presently on the market may nonetheless warrant control because of substitution risk, was considered with respect to 9-hydroxycorynantheidine, and if not, why the two were treated differently.

3. State whether the Department is aware of Florida's inclusion of

9-hydroxycorynantheidine in its June 2026 emergency rule, and whether it has reviewed the basis on which that state acted.

4. Publish, in any subsequent notice, the full list of *Mitragyna speciosa*

alkaloids considered and the disposition of each, so that the public can evaluate the scope of the action rather than infer it.

WHAT WE DO NOT ASSERT

We have not located 9-hydroxycorynantheidine products offered for sale, and we do not claim a market presently exists. We do not claim its potency is equivalent to 7-hydroxymitragynine; reported mu-opioid affinity is weaker. We raise a gap in scope, not a finding of present harm.

Obsidian Watch Group is an independent investigative organization with no financial interest in kratom, 7-OH, or any company in this sector, and no funding from any party to this proceeding.

Respectfully submitted,

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Supporting documents: github.com/jpuckett11/ObsidianGroup_CaseSevenfold